

However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

The court has carefully reviewed the SAC and the exhibits thereto. The court finds the SAC alleges facts sufficient to support a cause of action for unlawful detainer. The demurrer to the SAC is overruled.

Defendants shall file and serve an answer by June 29, 2026.

6. S-CV-0027191 Squaw Creek Condominium Assoc. v. Squaw Creek Assocs.

The motion is dropped in light of the moving party's request to remove from calendar filed with the court on June 17, 2026.

7. S-CV-0046091 Bakos, Matthew C vs. Roach, William

Motion for Leave to File a First Amended Complaint ("FAC")

Plaintiff moves to amend his initial complaint to add four additional causes of action.

Defendant's opposition was filed and served on June 16, 2026, providing a mere four court days' notice rather than the required nine court days' notice. (Code Civ. Proc., § 1005, subd. (b).) Defendant provides no explanation for the untimely filing. Plaintiff objects to the untimely opposition. The court sustains the objection and does not consider the untimely opposition.

The court may permit a party to amend a pleading in the furtherance of justice and on such terms as may be just. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Leave to amend is generally exercised liberally provided there is no showing of prejudice to the opposing party. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) Despite the policy of liberally allowing amendments, whether to grant or deny an amendment is nonetheless "largely within the sound discretion of the trial court" and "its exercise will not be disturbed in the absence of a showing of gross abuse." (*Jew Fun Him v. Occidental Life Ins. Co.* (1948) 88 Cal.App.2d 246, 249.) Denial is not an abuse of discretion where the complaint would not have been sufficient to state a cause of action if the proposed amendments had been allowed. (*Stiebel v. Roberts* (1941) 42 Cal.App.2d 434.)

The motion is granted. (Code Civ. Proc., § 473, subd. (a)(1).) Plaintiff shall file and serve his first amended complaint by July 6, 2026.